

CHAPTER 5.

An Act to amend the law with respect to the landing of imported animals in Great Britain and matters connected therewith.

[15th December 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this Act, Canadian store cattle may, if the conditions specified in this section are fulfilled, be landed in Great Britain without being required to be dealt with and slaughtered in accordance with the provisions of Part I. of the Third Schedule to the Diseases of Animals Act, 1894 (in this Act referred to as "the principal Act").

Importation
of Canadian
store cattle.

57 & 58 Vict.
c. 57.

(2) The conditions to be fulfilled for the purposes of this section are as follows:—

(a) The cattle must before shipment have been marked indelibly in such manner as the Minister may prescribe, and must have been shipped from a port in the Dominion of Canada:

(b) The vessel to be used for the voyage must have been inspected by the representative of the Minister in Great Britain, or by the duly authorised representative of the Government of the Dominion of Canada, and found to be suitable and properly fitted and equipped for the humane treatment of the cattle during the voyage, and the avoidance of unnecessary suffering by the cattle:

(c) The Minister must be satisfied—

(i) that the cattle were for a period of three clear days immediately before shipment kept separate from other animals, and were examined from time to time during that period by a duly authorised veterinary officer of the Dominion of Canada, and in particular were thoroughly so examined immediately before

shipment, and that on such examination no animal examined was found to be affected with cattle plague, pleuro-pneumonia, or foot-and-mouth disease;

(ii) that the cattle were not at the time of shipment affected with mange or any other disease which is declared by the Minister to be a disease within the meaning of this provision;

(iii) that, if at any time within twenty-eight days before the shipment of the cattle the vessel in which the cattle are brought to Great Britain had had on board any animal which had been exported or carried coastwise from any port or place in any country other than Great Britain or the Dominion of Canada, or had entered or been within any such port or place, the vessel was before the shipment of the cattle effectively cleansed and disinfected to the satisfaction of the duly authorised representative of the Government of the Dominion of Canada;

(iv) that the cattle were during the voyage kept separate from other animals and daily examined by a duly authorised veterinary officer of the Dominion of Canada, and that on such examination no animal examined was found to be affected with cattle plague, pleuro-pneumonia, or foot-and-mouth disease;

(v) that the vessel did not during the voyage enter any port or place outside Great Britain:

(d) The cattle must be landed at a port and at a landing place approved by the Minister for the purposes of this section.

(3) Cattle landed under this section shall be detained at the landing place at which they are landed and there isolated from all other animals for such period, commencing from the time at which the landing of the cattle is completed, as may be required for the thorough examination of the cattle by veterinary inspectors and the issue of licences for their movement, and no cattle shall be moved from the landing place unless and until

the movement is authorised by a licence granted in accordance with the provisions of the Schedule to this Act.

(4) If, on the examination of any cattle landed under this section, the veterinary inspector suspects any animal of being affected with cattle plague, pleuro-pneumonia, or foot-and-mouth disease, he shall cause all the cattle then in the landing place to be detained therein until he has satisfied himself as to whether the suspected animal is or is not so affected, and for the purposes of the examination the inspector may cause the suspected animal to be slaughtered.

(5) If it is found on any such examination that any animal is affected with any such disease as aforesaid, the owner or person in charge of any cattle then in the landing place shall cause all those cattle, as having been exposed to the infection of the disease, to be slaughtered within such time as the veterinary inspector may fix, and in any such case none of the cattle shall be moved from the landing place unless in the opinion of the inspector it is necessary so to do for the purpose of slaughter and then only in accordance with such conditions, if any, as may be imposed by the licence authorising the movement.

(6) If the person whose duty it is under the last preceding subsection to cause any cattle to be slaughtered fails to cause the cattle to be slaughtered within the time fixed in that behalf, the Minister may, but without prejudice to the liability of that person to proceedings for an offence under the principal Act, cause the cattle to be slaughtered and to be disposed of in such manner as he thinks fit, and any sum received by the Minister in respect of the sale of the carcasses of any cattle so slaughtered shall, after the deduction therefrom of the expenses of slaughter and disposal and the amount of any importation fees, be paid to the owner of the cattle.

(7) The Minister may by order suspend the operation of this section during any period during which he has reason to believe that cattle plague, pleuro-pneumonia, or foot-and-mouth disease exists in the Dominion of Canada, and for such further period after any such disease has ceased so to exist as, in his opinion, is necessary for the purpose of avoiding the risk of the introduction of the disease into Great Britain.

(8) In this Act the expression "Canadian" in relation to any animal means "born and reared in the Dominion of Canada," and the expression "store cattle" means castrated male or spayed female bovine animals which are intended for feeding purposes and not for immediate slaughter.

Power of Minister to authorise conditionally importation of Canadian animals.

2. The Minister may, notwithstanding anything in the principal Act, by order authorise any Canadian animals, other than store cattle, to be landed in Great Britain without being subject to the provisions of Part I. of the Third Schedule to the principal Act, if, in the case of any such animals being cattle, there is produced a certificate issued by a duly authorised officer of the Dominion of Canada to the effect that the animals were within one month before shipment effectively tested for tuberculosis and were found to be free therefrom, and if the animals are landed in accordance with such conditions, to be prescribed in the order, as may, in the opinion of the Minister, be necessary or expedient for the prevention of the introduction of disease, other than tuberculosis, into Great Britain.

Meaning of "imported animals" and provision as to landing of animals from Ireland.

3. For the word "foreign" wherever that word is used in relation to an animal or thing in the principal Act, or any Act amending the provisions of that Act relating to foreign animals or foreign things, there shall be substituted the word "imported," and for the purposes of the principal Act as so amended an imported animal or an imported thing shall mean an animal or thing brought to Great Britain from a country out of Great Britain, and the provisions of the principal Act as so amended relating to imported animals and imported things shall have effect as though the expression "Great Britain" were therein substituted for the expression "the United Kingdom," but except to such extent as the Minister may by order direct, the provisions of the Third Schedule to the principal Act shall not apply to animals brought to Great Britain from Ireland or any part thereof :

Provided that, if the Minister is satisfied that cattle plague, pleuro-pneumonia or foot-and-mouth disease exists or has recently existed in, or that adequate provision is not made for the prevention of the introduction of any such disease into, any part of Ireland, he may by

order prohibit the landing in Great Britain of animals or any class of animals brought from Ireland or any part thereof, or may apply the said provisions to animals or any class of animals so brought with such modifications, if any, as he may think necessary or expedient.

4. The landing of imported animals in Great Britain shall be effected in such manner, at such times and subject to such supervision as the Commissioners of Customs and Excise may direct.

Supervision by Commissioners of Customs and Excise of landing of animals.

5. Compensation shall not be payable under the Diseases of Animals Acts, 1894 to 1914, in respect of any imported animal which is, by reason of the animal being diseased, or suspected, or having been exposed to the infection of any disease, slaughtered in a foreign animals' wharf or in an approved landing place.

Compensation not payable in respect of slaughter of imported animals.

6. There shall be charged in respect of the landing of imported animals in Great Britain such fees as may, in the opinion of the Treasury, be sufficient to meet the expenses of the examination of imported animals by veterinary inspectors, but not exceeding as respects any one animal the sum of sixpence, and any fees so charged shall, on demand by the Minister and before the animal or the carcase of the animal, as the case may be, is moved from the wharf or landing-place, be paid to him by the person so moving the animal or carcase.

Fees on importation.

7. Before any order is made under the preceding provisions of this Act a draft of the order shall, unless it is either an order suspending the operation of section one of this Act or prohibiting the landing of animals, or an order consequential on the making of any such order of suspension or prohibition, be laid before each House of Parliament for a period of not less than twenty-one days on which that House has sat, and if either House before the expiration of that period presents an Address to His Majesty against the draft or any part thereof, no further proceedings shall be taken thereon, but without prejudice to the making of any new draft order.

Draft of orders to be laid before Parliament.

8.—(1) The provisions contained in the Schedule to this Act shall apply with respect to imported cattle.

Regulation of movement of imported cattle.

(2) The Minister may by order alter or modify any of the said provisions if he considers it necessary or

expedient so to do, and the alterations or modifications are such as in his opinion will not diminish or prejudice the protection against the risk of the spread of disease which is afforded by the said provisions as enacted in the said Schedule :

Provided that, no such alteration or modification shall reduce the period of detention prescribed by such provisions.

Extension
of power to
make orders
under s. 30
of principal
Act.

9. The power of the Minister to make orders under section thirty of the principal Act shall include a power to make orders for the following purposes :—

- (a) For requiring imported animals, whether as a condition of landing or otherwise, to be marked by tagging or in any other manner ; and
- (b) For providing for the application to imported animals of any test for disease or of any treatment for disease.

Short title,
interpreta-
tion and
commence-
ment.

10.—(1) This Act may be cited as the Importation of Animals Act, 1922 (Session 2), and the Diseases of Animals Acts, 1894 to 1914, and this Act may be cited together as the Diseases of Animals Acts, 1894 to 1922.

- (2) In this Act, unless the context otherwise requires :—

The expression “ the Minister ” means the Minister of Agriculture and Fisheries, and the expression “ the Ministry ” shall be construed accordingly :

The expression “ veterinary inspector ” means a person appointed by the Minister to be a veterinary inspector for the purposes of the principal Act.

- (3) This Act shall be deemed to form part of and shall be construed as one with the principal Act.

(4) This Act shall come into operation on such date, not later than the first day of April nineteen hundred and twenty-three, as His Majesty may by Order in Council appoint.

SCHEDULE.

Sections 1, 9.

REGULATION OF MOVEMENT OF IMPORTED CATTLE.

1.—(1) No imported cattle shall be moved from the landing place at which they are landed except under a licence granted by a veterinary inspector and in accordance with such conditions, if any, as may be imposed by the licence and with the regulations contained in this Schedule.

Licence for
movement
from landing
place.

(2) A licence granted under this provision shall be a licence authorising the cattle to be moved either to—

- (a) a market specially authorised in writing by the local authority of the district for the purposes of this provision (in this Schedule referred to as “an authorised market”); or
- (b) premises (including a slaughterhouse) other than an authorised market.

(3) A local authority may, if they think fit, instead of granting an authority for the purposes of this provision in respect of the whole of a market, grant such an authority in respect of some part of a market, and where a part of a market is so authorised the provisions of this Schedule shall, unless the context otherwise requires, have effect as though references to a part of a market were substituted for references to a market.

(4) A copy of every authority granted by a local authority for the use of a market for the purposes of this provision shall be sent forthwith by the local authority to the Ministry.

2.—(1) Imported cattle which have been moved to an authorised market shall at all times while therein be kept separate from all animals other than imported cattle, and shall not, if part only of a market is authorised for the purposes of this Schedule, be permitted, while any such other animals are in the market, to enter any part of the market other than the authorised part.

Conditions to
be complied
with in the
case of cattle
in authorised
markets.

(2) No animals other than imported cattle shall be permitted to enter an authorised market.

(3) Imported cattle exposed for sale at an authorised market shall not be moved therefrom otherwise than under a licence granted by a local inspector and in accordance with such conditions, if any, as may be imposed by the licence or otherwise than to premises, not being an authorised market, to be there detained in accordance with the provisions of this Schedule.

Detention of
imported
cattle on
arrival at
premises
other than
market.

3. When imported cattle have under a licence in that behalf been moved to premises other than an authorised market, whether from the landing place or from an authorised market, they shall on arriving at those premises be detained therein, unless previously slaughtered therein, for a period of six days from the date of arrival.

During the said period the cattle shall not be moved from the said premises otherwise than under a further licence to be granted by a local inspector, or otherwise than to a slaughter-house, to be therein detained until they are slaughtered, or to a vessel for export.

Temporary
detention in
special
enclosures of
cattle await-
ing sale at
market.

4.—(1) Where a licence has been granted under this Schedule authorising the movement of imported cattle to an authorised market, the cattle may by virtue of that licence, subject as hereinafter provided, be temporarily detained in special lairs or other enclosures adjoining or near to the market while awaiting exposure for sale in the market :

Provided that—

- (a) the lairs or enclosures must be lairs or enclosures the use of which has been authorised by the local authority for the purpose of this provision, and the use of the lairs or enclosures for the purpose aforesaid shall be subject to such directions as may be given by or on behalf of the local authority ;
- (b) the lairs or enclosures must not be used for any animals other than imported cattle in course of being moved to an authorised market under this Schedule ;
- (c) the cattle shall not remain in the lairs or enclosures for a period exceeding seventy-two hours.

(2) If the Minister after making enquiries is satisfied that it is for any reason inexpedient or undesirable that any lairs or other enclosures, the use of which has been authorised for the purpose aforesaid, should be used for that purpose, the Minister may direct that those lairs or enclosures shall cease to be authorised lairs or enclosures for the purpose of this provision.

Provisions as
to licences
and move-
ment.

5.—(1) A licence granted under this Schedule for the movement of imported cattle shall remain in force for a period of five days, inclusive of the day on which it is granted, and no longer.

(2) A copy of every licence granted under this Schedule shall be sent forthwith by the veterinary inspector or local inspector by whom it is granted to the local authority of the district in which the authorised market or other authorised place of destination is

situate, and also, where the place of destination is not an authorised market, to the occupier of that place.

(3) Every licence granted under this Schedule shall accompany the cattle to which it relates throughout the time during which they are being moved thereunder, and shall on demand be produced by the person for the time being in charge of the cattle to any veterinary inspector or local inspector or police constable.

(4) A licence authorising the movement of imported cattle to an authorised market shall be delivered up at the entrance to the market by the person for the time being in charge of the cattle to the person appointed by the local authority for the purpose of receiving such licences, and every licence authorising imported cattle to be moved elsewhere than to an authorised market shall forthwith after the arrival of the cattle at the authorised place of destination be delivered up at, or sent by post to, the nearest police station in the district by the person then in charge of the cattle.

(5) Imported cattle to be moved under a licence granted under this Schedule shall, so far as is practicable, be moved by rail, and shall in all cases be moved without unnecessary delay and direct to the authorised place of destination.

(6) Where imported cattle are being moved by rail they shall not, until they reach the railway station from which they are to be moved to the premises specified in the licence, be removed from their trucks for any purpose other than the purpose of being fed or watered, and then only at some railway station, and if removed for that purpose shall not be taken outside the station premises :

Provided that, nothing in the foregoing provision shall prevent the removal from its truck of any animal on account of any injury sustained by it or for any other necessary purpose.

6. Nothing in this Schedule shall

Savings.

- (a) apply to imported cattle intended for exhibition or other exceptional purposes, the landing of which is allowed for the time being by the Minister subject to the provisions of Part II. of the Third Schedule to the principal Act ; or
- (b) be deemed to authorise the movement of any cattle in contravention of any order of the Minister, or any regulation of a local authority prohibiting or regulating the movement of cattle.

Interpreta-
tion.

7. In this Schedule, unless the context otherwise requires,—

The expression “market” includes a fair-ground or saleyard:

The expression “local inspector” means a person appointed by the local authority of the district to be an inspector for the purposes of the principal Act:

The expression “slaughterhouse” means any premises where animals are habitually slaughtered.
